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Case Number: 24STCV00841 Hearing Date: July 9, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANT

HUAN GUO'S MOTION FOR SUMMARY JUDGMENT; OR IN THE ALTERNATIVE, SUMMARY
ADJUDICATION

Background Facts

Plaintiff Dong Guo ("Plaintiff")

sues Defendants Huan Guo, Yun Zhou, Maili Li, Cainiao Supply Chain US. Inc., and
Does 1 to 50 pursuant to a June 17, 2024, First Amended Complaint ("FAC")
alleging claims of (1) Intentional Infliction of Emotional Distress ("IIED"),
(2) Defamation, and (3) False Imprisonment. Plaintiff's claims arise from
allegations that Defendants Guo, Zhou, and Li separately made false verbal
statements to law enforcement officers relating to Plaintiff, including that Plaintiff
was fired from his employment at 4PX Express USA and that Defendants feared a
workplace shooting by Plaintiff, which led to Plaintiff's arrest by the Los
Angeles County Sheriff's Department ("LASD") and caused the termination of
Plaintiff's employment with two subsequent employers.

On April 10, 2026, Defendant Guo

filed a motion for summary judgment or, in the alternative, summary
adjudication against all three causes of action alleged in Plaintiff's FAC.
Plaintiff has filed an opposition, and Defendant Guo has filed a reply and
objections to evidence filed in support of Plaintiff's opposition. Defendant
Guo's motion is now before the Court.

Motion for Summary

Judgment or, in the Alternative, Summary Adjudication

a. Request
for Judicial Notice

The Court declines to take judicial notice of the documents advanced by Plaintiff in opposition to summary judgment as the documents are not necessary for disposition of the motion before the Court.

b. Evidentiary
Objections

i.
Plaintiff's Objections

Plaintiff has not filed standalone objections to the evidence offered by Defendant Guo, at most occasionally raising short evidentiary objections in the separate statement, which the Court does not consider other than as advisory. (Cal. Rules of Court, rule 3.1354(b).)

ii.
Defendant's Objections

OVERRULED: Objection to Plaintiff's entire declaration [based on translation arguments]

SUSTAINED: None

NOT RULED ON (NON-DISPOSITIVE): All remaining objections

c. Legal
Standard on Motion for Summary Judgment or, in the Alternative, Summary Adjudication

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact for trial or that the moving party is entitled to a judgment as a matter of law. (Code of Civ. Proc., § 437c, subd. (c).) A party may also seek summary adjudication of select causes of action, affirmative

defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment, but which must completely dispose of the challenged cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

The moving party bears the initial burden of production to make prima facie showing no triable material fact issues. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden on summary judgment or adjudication “is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact.” (*Id.* at p. 850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (*Id.* at p. 849.)

Where a defendant seeks summary judgment or adjudication, the defendant must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Code Civ. Proc., § 437c, subd. (o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (*Ibid.*) “[I]n ruling on motions for summary judgment courts are to “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” [Citations].” (*Cheal v. El Camino Hospital* (2014) 223 Cal.App.4th 736, 760.)

d. Actionable

Allegations Directed at Defendant Guo in the First Amended Complaint

The FAC generally alleges that around “May 6, 2022, defendants contacted the Los Angeles County Sheriff’s Department and made an incident report that plaintiff Guo was fired and that defendants feared for their lives that plaintiff would return to the workplace and kill

the defendants,” repeating those statements to LASD investigators on multiple occasions over the next several months. (FAC, ¶¶ 13-14.)

The FAC also expressly alleges that

“defendant Guo made ... false verbal statements to the sheriff” to the effect that “plaintiff was fired on April 27, 2022[,] plaintiff is capable of carrying out the threat of a mass shooting[,] the news posts of the mass shooting were directed only to the defendants [sic][,] and the defendant was scared of the plaintiff.” (FAC, ¶ 15.)

The FAC then alleges that as a result of the foregoing conduct, Plaintiff was arrested by the LASD and forced to hire an attorney, with the Los Angeles District Attorney’s Office ultimately declining to press charges against Plaintiff, Plaintiff being terminated from employment with two subsequent employers, and Plaintiff suffering severe emotional distress and damages as a result thereof. (FAC, ¶¶ 18-22, 23, 26, 30, 35, 37, 43.)

e. Discussion
and Disposition

i.

Summary Judgment, Defendant Guo, First to
Third Causes of Action, Litigation Privilege: DENIED

Defendant Guo’s motion for summary judgment argues that there exists a lack of triable issues as to the three claims alleged against him—IIED, Defamation, and False Imprisonment—because all three claims premise liability on Defendant Guo having made verbal statements to law enforcement authorities, which amount to protected, privileged statements under California’s litigation privilege law, and which were neither falsely made nor made with reckless disregard for falsity, thus foreclosing liability against Defendant Guo. (See, e.g., Motion, pp. 12-13, 14, 16.)

The litigation privilege, codified at Civil Code section 47, subdivision (b), provides that a “publication or broadcast” made as part of a “judicial proceeding” is privileged. This privilege is absolute in nature, applying to all publications, irrespective of their maliciousness. The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by

litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action. The privilege is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards. (Action Apartment Assn, Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241, quotations and citations omitted.) For example, this absolute privilege applies to citizen reports of suspected criminal activity to law enforcement personnel. (Cox v. Griffin (2019) 34 Cal.App.5th 440, 449, citation omitted (Cox).)

In support of this position, Defendant Guo relies on evidence to prima facie show that Plaintiff in fact made concerning posts regarding weapons and workplace violence on social media site WeChat, which were visible by Defendants, and that the statements were considered sufficiently serious and connected to the workplace for Defendant Guo to contact law enforcement authorities. Defendant Guo also argues that evidence in support of his motion shows a lack of triable issues as to whether the only exception to the litigation privilege applies, i.e., no triable issues as to whether Defendant Guo made his statements to law enforcement falsely or with a reckless disregard for their falsity. More specifically, Defendant Guo points to evidence prima facie showing (1) concerning posts regarding weapons and workplace violence made by Plaintiff on social media and accessible by Defendants (e.g., pictures of Plaintiff with firearms, article referencing years-past mass shooting), (2) Defendant Guo's knowledge of the statements, his concern for workplace safety, and his subsequent reports in good faith to law enforcement regarding Plaintiff's termination, the WeChat posts, and Defendant Guo's concerns, and (3) deposition testimony in which Plaintiff fails to identify factual bases for a factfinder to conclude that Defendant Guo made his statements with knowledge of their falsity or a reckless disregard therefor. (Ibid., citing Motion, Separate Statement, Undisputed Material Fact (UMF) Nos. 4, 16, 18-25 [evidence re: posts], 26-27 [evidence re: law enforcement reports], 28-32 [evidence re: subsequent posts], 40 [evidence re: falsity/reckless disregard deposition testimony].)

For the most part, Plaintiff does not dispute Defendant Guo's evidence. (See Opposition, Separate Statement, UMF Nos. 4, 18-22, 25-29, 31-32, 40 [undisputed by Plaintiff]; id. at UMF Nos. 16, 23-24, 30 [disputed UMFs].)

After review, the Court determines

that the cited evidence is not properly objected to, shows bases for a prima facie application of the litigation privilege under Cox to the actionable conduct alleged in the FAC against Defendant Guo, and sufficiently prima facie stands for the propositions advanced in Defendant Guo's papers as to carry his burden on summary judgment vis-à-vis applicability of the litigation privilege.

The burden shifts to Plaintiff to show that triable issues of fact remain relating to whether the litigation privilege should apply to the actionable conduct alleged in the FAC against Defendant Guo, which Plaintiff carries.

Among other things, Plaintiff argues that the litigation privilege does not apply under Civil Code section 47, subdivision, (b)(5), which removes from the ambit of the litigation privilege any communications between a person and a law enforcement agency involving a report of a criminal act that is knowingly false or was made in reckless disregard of falsity of the report. In support, Plaintiff points to Defendant Guo's deposition testimony to the effect that both at the time that Defendant Guo spoke with police on May 6, 2022, and on the date of his deposition several years later, Defendant Guo was not certain whether Plaintiff had been terminated from his employment at 4PX Express USA. (Opposition, p. 4, citing evidence located at Opposition, Separate Statement, UMF No. 48.) Notably, the Reply's separate statement argues that Plaintiff mischaracterizes Defendant Guo's testimony, citing evidence filed with the moving papers in support. (Reply, Separate Statement, UMF No. 48.)

Defendant Guo's objections do not address UMF No. 48. (See Reply, Evidentiary Written Objections.)

A review of the evidence cited at UMF 48 confirms the proposition advanced by Plaintiff therein: Defendant Guo testified that he did not know, as of May 6, 2022, or November 12, 2025, when he was deposed, whether Plaintiff had been fired from his employment at 4PX Express USA. The Court does not credit the Reply separate statement argument that Defendant Guo's testimony is being mischaracterized. The deposition testimony cited at UMF No. 48 speaks for itself and is not objectionable.

Moreover, at UMF Nos. 26 and 27, Defendant Guo himself describes the picture he painted to law enforcement regarding Plaintiff as of May 6, 2022: Plaintiff is a fired employee of 4PX Express USA,

who has been posting concerning content regarding weapons and workplace violence on social media site WeChat, which was visible to Defendant Guo only after Plaintiff's termination, and which made Defendant Guo afraid that Plaintiff would perpetrate a mass shooting at the workplace. (Motion, Separate Statement, UMF Nos. 26, 27, citing inter alia Motion, Ferris, Decl., Ex. B, p. 8 [Statement of Probable Cause for search warrant, based on Guo's statements].) However, if Defendant Guo has testified that he did not know as of May 6, 2022, when Plaintiff was fired, triable issues remain as to whether the image that Defendant Guo painted for law enforcement amounted to falsity or reckless disregard therefor.

Moreover, a review of Defendant Guo's deposition transcript also outright contradicts the chain of events described in Defendant Guo's UMF No. 27. To illustrate, paraphrased, the sequence of events in UMF No. 27 is Plaintiff is terminated, Plaintiff makes concerning posts online, and only after termination is Defendant Guo able to see those posts for the first time, leading to a concern of a workplace shooting and reports to law enforcement. (Motion, Separate Statement, UMF No. 27 [undisputed in opposition].) Yet, at his deposition, Defendant Guo testified that Defendant Guo was "advised that [Plaintiff] had been terminated" only after Defendant Guo had seen at least one of Plaintiff's "post[s]." (Opposition, Comp. of Evid., Ex. I, 20:20-21:6, cited in Opposition, UMF No. 48 and Opposition, p. 4.) This is a clear inconsistency further undermining the chain of events reported in UMF No. 27, as described above.

Taken together, Plaintiff's evidence and Defendant's own separate statement language/evidence show triable issues as to the veracity of Defendant Guo's statements relating to Plaintiff made on May 6, 2022. It follows that summary judgment in favor of Defendant Guo based on the litigation privilege cannot succeed here because "a defendant is entitled to summary judgment only when all theories of liability have been negated." (Johnson v. Chui (2011) 199 Cal.App.4th 775, 778.)

Accordingly, Plaintiff carries his burden to show triable issues of material fact relating to the applicability of the litigation privilege to conduct alleged against Defendant Guo, and summary judgment of the FAC's claims alleged against Defendant Guo, as based on the litigation privilege, is DENIED.

Summary Adjudication, Defendant Guo,
First to Third Causes of Action, Litigation Privilege: DENIED individually
as to each claim

The Court briefly disposes of
Defendant Guo's motion insofar as the notice seeks not only summary judgment,
but also summary adjudication of all claims alleged against Defendant Guo, as based
on the litigation privilege.

All three causes of action are
premised on the same factual allegations: communications with law enforcement.
(FAC, ¶¶ 13-15, 18-22, 23-24, 30-31, 37-39.) As a result, the applicability of
the litigation privilege to all three causes of action on summary judgment is
identical, and the Court determined that question in favor of Plaintiff as
discussed above.

Summary adjudication of the FAC's
claims against Defendant Guo, as based on the litigation privilege, is thus
DENIED individually as to each claim.

iii.

Summary Judgment/Adjudication, Defendant
Guo, First, Second, and Third Causes of Action – Failure to establish all
necessary elements of Cause of Action: DENIED

While Defendant Guo's notice of
motion advances a failure to establish all necessary elements of IIED,
Defamation, and False Imprisonment as a basis for summary judgment or
adjudication of those claims, a review of Defendant's moving points and
authorities fail to show any arguments in support of this position other than
arguments firmly rooted in the litigation privilege, which was disposed of by
the Court above in favor of Plaintiff. (Compare Motion, p. 2, ¶¶ 1, 2 [notice],
with Motion, pp. 11-13 [points and authorities arguments against first cause of
action, merely addressing litigation privilege and not necessary elements of
cause of action], 13-15 [same for second cause of action], 15-17 [same for
third cause of action].)

Summary judgment and adjudication
of the FAC's first to third causes of action in favor Defendant Guo, as based
on a failure to establish necessary elements of liability, are thus DENIED.

f. Conclusion

Defendant Guo's Motion for Summary

Judgment; or in the Alternative, Summary Adjudication, is:

(1) DENIED as to summary judgment

of the FAC's first, second, and third causes of action, as alleged against Defendant Guo; and

(2) DENIED as to summary

adjudication of the FAC's first, second, and third causes of action, as alleged against Defendant Guo.

Defendant Guo is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.